
NAVIGATING CHOPPY SEAS OF THE CONSTRUCTION INDUSTRY: DISSECTING THE CONTRACTOR-CLIENT RELATIONSHIP IN PRIVATE CONSTRUCTION CONTRACT DISPUTES

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Much has been told about the horrors of the proverbial handshake between two gentlemen who agree to bind themselves to perform a mutual obligation with one another without written proof. Decades-old friendship degenerate into internecine courtroom battles. Courtroom battles are nothing but a zero-sum game of documentation, and a contest of which side proves to be the skillful rapier of the rules of evidence.

With our legal systems overwhelmed, witnesses die, their recollections may wither or even evidence may disintegrate through the passage of time. Though one may prove the existence of a document through other means such as a recital in a public instrument or testimony of a witness,¹ this may not guarantee that the court may give this enough probative value so that the onus proving one's case may be enough to establish a cause of action. This may be true in construction contracts.

The lack of specificity of obligations of the respective parties reduced into writing is the cause why there are 88 construction industry-related arbitrations pending in the various institutions in 2021 alone involving megastructures.² In 2020, the global average value in dispute has risen to USD 54.26 million for every case.³ This a cogent reason why standards must be adopted and respective obligations must be set in stone to avoid being embroiled in a bitter legal dispute whether in court, or in an arbitral tribunal.

Just last year, I have attended a webinar sponsored by the Construction Industry Authority of the Philippines (“**CIAP**”), an attached agency of the Department of Trade and Industry which serves as the central authority in the Philippine construction industry policy, and program formulation, development and

¹ §5, Rule 130, 2019 Proposed Amendments to the Revised Rules on Evidence, <https://sc.judiciary.gov.ph/2019-amendments-to-the-1989-revised-rules-on-evidence/>

² Jus Mundi, Construction Arbitration Report 2021, available at <https://dailyjus.com/wp-content/uploads/2021/10/Construction-Arbitration-Report-20-Oct-2021.pdf>

³ Arcadis, 2021 Global Construction Disputes Report (2021), <https://www.arcadis.com/en/knowledge-hub/perspectives/global/global-construction-disputes-report>

implementation.⁴ The webinar was organized by the Philippine Institute of Construction Arbitrators and Mediators (“**PICAM**”). The PICAM is an organization composed of multidisciplinary professionals from law, architecture and engineering trained in Alternative Dispute Resolution. The beginning of the whole segment focused on construction contracts discussed by the late Atty. Roberto N. Dio (“**Atty. Dio**”) prior to his passing last 2023.

One of the segments discussed the purpose and advantages of adopting CIAP Document 102 in the whole scheme of the construction process. Otherwise known as the Uniform General Conditions of Contract for Private Construction, CIAP Document 102 was developed in May 1990 through the collaborative efforts of Here, Dio highlights the two purposes of the document, namely: (1) it establishes a fair contract that balances risk sharing between the client and contractor, and (2) encourages the balance of cost allocation of the project and the associated risks that come along with it.⁵ This will be discussed in detail further down below.

It can be recalled that even the Civil Code points out that contracts are obligatory in any form provided that all the essential requisites are present.⁶ This freedom however is only limited by the law’s requirement that a contract should manifest in a specific form such as the prerequisite that it must be written, be placed in a public instrument, or that for a real contract to be perfected, delivery must be shown.⁷ This disquisition will attempt to discuss the formation of the contract in all its possible permutations but emphasizes the superiority of the contract in its written form focusing primarily on the advantages of the CIAP Document 102. I will also discuss in passing certain issues in construction arbitration to provide more context into the succeeding discussions.

One must take into consideration that a construction is not a contract of sale according to Atty. Dio. Rather, it is a contract for a piece of work. This is a contract where the contractor binds himself to produce a project specifically in accordance with the particular specifications of his client. In other words, a contract for a piece of work contemplates a made-to-order contract of service.

Often, the real culprit to blame for why some contractors abandon projects or run away with their client’s money or clients get away with not paying their contractors is a lack of a legally enforceable document that contains all the necessary protections under the law.

⁴ Construction Industry Authority of the Philippines [CIAP], Mission/Vision, <http://construction.gov.ph/about-ciap/mission-vision/>

⁵ R.N. Dio, Know Your Contracts – Clark 2023, CIAP-PDCB Lecture (Mar. 30, 2023).

⁶ Civil Code, § 1356, Rep. Act 386, as amended (Phil.).

⁷ Civil Code, § 1357, 1358, 1316, Rep. Act 386, as amended (Phil.).

There are individuals who, for their ignorance, are simply ill-advised by friends and family who know nothing about the law. And the hapless project owner or contractor ends up doing themselves a greater harm than they had imagined due to underestimating the grave consequences of the law.

As construction contracts are contracts for a piece of work, the following principles govern the interpretation of these contracts.⁸

First: The contractor shall execute the work with the qualities agreed upon and has no defects that destroy or lessen its value or fitness for its ordinary or stipulated use in accordance with Article 1715 of the Civil Code, which provides:

Article 1715. The contract shall execute the work in such a manner that it has the qualities agreed upon and has no defects which destroy or lessen its value or fitness for its ordinary or stipulated use. Should the work be not of such quality, the employer may require that the contractor remove the defect or execute another work. If the contract fails or refuses to comply with this obligation, the employer may have the defect removed or another work executed, at the contractor's cost. (n)

Second: If the work is not of such quality, the employer may require the contract to remove the defect or execute another work pursuant to Article 1715 of the Civil Code as well. This may be harmonized with Article 1167 which states:

Article 1167. If a person obliged to do something fails to do it, the same shall be executed at his cost.

Third: If the contractor fails or refuses to comply, the employer may have the defect removed or another work executed at the contractor's cost also based on the same provisions discussed above.

Fourth: if the parties agreed that the work shall be accomplished to the satisfaction of the proprietor (project owner), in case of disagreement, the question shall be subject to expert judgment. One may refer to the first paragraph of Article 1730 which shows:

⁸ R.N. Dio, Know Your Contracts – Clark 2023, CIAP-PDCB Lecture (Mar. 30, 2023).

Article 1730. If it is agreed that the work shall be accomplished to the satisfaction of the proprietor, it is understood that in case of disagreement the question shall be subject to expert judgment.

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The decision of the third-party neutral shall be final except in case of fraud or manifest error as provided in the second paragraph of Article 1730, as placed below:

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If the work is subject to the approval of a third person, his decision shall be final, except in case of fraud or manifest error. (1598a)

The expert judgment is likened to expert determination, a mode of Alternative Dispute Resolution. In expert determination, parties mutually seek an expert's evaluation of emerging problems and possible solutions without using the forms of judicial process and without either side's defining an entrenched position.⁹ Expert determinations create binding decisions on technical rather than legal issues, and experts have the power to ask questions of the parties before rendering a decision. This mode of dispute resolution is common in intellectual property and construction disputes where estimates of valuers, scientists and engineers are critical.

Construction contracts come in three forms, namely: (1) oral or informal, (2) short form, and (3) long form. The most common contracts chosen by most consumers would be oral or informal. This is the easiest to form. The Civil Code provides that contracts are obligatory in whatever form they may have been entered into, provided all the essential requisites for their validity are present. However, when the law requires that a contract be in some form in order it may be valid or enforceable, or that a contract be provided in a certain way, that requirement is absolute and indispensable.¹⁰ Evidence of consent or acceptance may be express or implied.¹¹

⁹ Black's Law Dictionary.

¹⁰ Civil Code, § 1356, Rep. Act 386, as amended (Phil.).

¹¹ Civil Code, § 1320, Rep. Act 386, as amended (Phil.).

Based on requirements of the Civil Code, the oral form is the easiest to form. The, is the hardest to enforce. The Statute of Frauds found in Article 1403 of the Civil Code does not apply to construction contracts and to contracts that are performed beforehand.

Which is why it is essential to incorporate the bids, quotations, plans and specifications into the contract itself. It is also to be borne in mind that laws are deemed part of the contract pursuant to Article 1156 to 1422 of the Civil Code governing Obligations and Contracts. Articles 1713-1731 of the Civil Code also apply as construction contracts are Contracts for a piece of work. Other laws such as the National Building Code, Contractors' License Law and others are deemed incorporated into construction contracts.

Given the disputes that have arisen due to several issues in construction projects, the Construction Industry Authority of the Philippines (“**CIAP**”), an attached agency of the Department of Trade and Industry, promulgated the Uniform General Conditions of Contract for Private Construction or CIAP Document No. 102 on May 1990. The committee responsible for CIAP Document No. 102 is composed of the following: the Philippine Constructors Association, Inc., United Architects of the Philippines, Philippine Institute of Civil Engineers, Confederation of Filipino Consultants, Inc., and the Construction Industry Authority of the Philippines.

The mandate of such document is to recommend and encourage the adoption of equitable and realistic contract conditions for construction and to reflect the usages of the trade and generally-accepted construction industry standards.

On 30 March 2005, the CIAP promulgated CIAP Board Resolution No.1 that prescribes the application of CIAP Document 102. This document serves as the procedure, guidelines and criteria by contracting parties to a construction project. CIAP Document 102 applies particularly to adjudication and settlement of contract disputes in contract implementation where (1) there are no general conditions of contract, or (2) conditions of contract are incomplete, or (3) certain conditions are ambiguous.

Where there are no general conditions, incomplete conditions, and ambiguous provisions, then, CIAP Document No. 102 will fill in the gaps or ambiguities. Nineteen years later, on 18 February 2019, the CIAP created a Technical Working group to review CIAP Document No. 102.

CIAP revised its Document No. 102 for minor formatting, inclusion of gender-free language, and updates as of 30 September 2002. CIAP also added a new feature called Annotations with Case Synopses and Jurisprudence.

The purpose of CIAP Document No. 102 rests on two principles, namely: (1) Fair contract that balances risk sharing, and (2) balancing the cost allocation between the parties.

Fair contracts that balance risk sharing is one of the cornerstones of sound and harmonious business dealings. This allows for apportionment of risks and clearly defines the rights and obligations of the parties involved.¹² The clear determination of the individual rights and obligations of the parties is essential to the construction industry because significant investments are made by both project owners and contractors. Both also take on huge risks when the project fails. Inequitable contractual relationships in the industry have, more often than not, resulted in abandonment of projects, huge losses, and even bankruptcy, hence, posing a threat to the long-term viability of the construction sector.¹³

Second, the balancing of cost allocation is premised on the equitable sharing of risks between the project owner and contractor. This scheme allows both parties to achieve a return for its completed work, and to prevent costs from incurring a budget overrun.¹⁴

*Werr Corporation International v. Highlands Prime, Inc.*¹⁵

This case is about the development of a condominium complex named Tagaytay Midland Complex between developer Highlands Prime, Inc. (“**HPI**”) and contractor Werr Corporation International (“**Werr**”). The contract stipulates that Werr was to complete the project within two hundred eleven (211) days between 22 July 2005 until 19 February 2006.

HPI was bound to pay Werr a total contract price of Two hundred million seventy-one seven hundred ninety-seven million pesos (PhP271,797,900) upon the

¹² R.N. Dio, Know Your Contracts – Clark 2023, CIAP-PDCB Lecture (Mar. 30, 2023).

¹³ Foreword, Construction Industry Authority of the Philippines [CIAP], Revised CIAP Document 102 (2022 Ed.), [http://construction.gov.ph/wp-content/uploads/2023/02/Revised-CIAP-Document-102-2022-Ed.pdf].

¹⁴ Werr Corp. International v. Highlands Prime, Inc., G.R. No. 187543, (28 February 2017) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/62803>

¹⁵ Ibid.

completion of the project inclusive of labor, supply, transport of materials, and taxes. The payment of the total project cost was to be paid in three installments subject to deductions based on liquidated damages due to delays and costs of covering rectification of defects.

Werr commenced with construction upon Werr's payment of the first installment. Werr continued to pay its progress billings subject to deduction of retention money for every installment. However, the project was not completion on the stipulated date which was 19 February 2006. As a result, extensions were granted by HPI to complete the project. HPI, only agreed to an extension until 15 October 2006. Werr sought the assistance of HPI to pay for its obligations under a "Direct Payment Scheme" totalling P24,503,500.08 to which HPI only approved a portion of the total amount. The amount under the Direct Payment Scheme was charged to HPI's accumulated retention money. This amount corresponded to the 93.18% completion of the project.

Unfortunately, despite the extensions, Werr was not able to complete the project. Thus, HPI terminated the contract. Werr sent an extrajudicial demand for it to recover P36,078,652.90 from HPI. In response, the latter said that it owed Werr only P14,834,926.71. Werr did not reply to this declaration from HPI. Werr then commenced arbitration proceedings against HPI before the Construction Industry Arbitration Commission ("CIAC").

Eventually, the CIAC ruled that HPI owed Werr for the balance of the retention money, but at a reduced amount of P10,903,331.30 and for arbitration costs. Werr owed HPI for unrecouped retention and for unpaid cash advances. It denied HPI's prayer for counterclaim. HPI filed for a Petition for Review before the Court of Appeals assailing CIAC's factual findings. The Court of Appeals modified its decision to the extent of what was awarded by way of liquidated advances and arbitration costs.

The Supreme Court ruled that as the standard conditions for contract for private construction adopted is promulgated by the CIAP, CIAP Document No. 102 applies suppletorily to private construction contracts to remedy the conflict in inter internal documents of, or to fill in the omissions in, in the construction agreement.

The Court further ruled that the omission in the Agreement may be supplemented by the provisions of the Civil Code, industry practice and the CIAP Document No. 102. Hence, the industry practice that substantial compliance excuses the contractor from payment of liquidated damages applies to the Agreement.

*Diesel Construction Co., Inc. v. UPSI Property Holdings, Inc.*¹⁶

This dispute centers on the interior architecture works on the 14th and 16th floors of the UPSI Building 3 Meditel/Condotel Project (“**the Project**”). Diesel Construction Co., Inc., the contractor, undertook to complete the project by way of progress billing or payment by installments based on the amount of completion of the project. The contractor posted a performance bond in favor of the project owner UPSI Property Holdings, Inc.

The contract contained comprehensive provisions for contract works and project completion, extensions for completion, change orders, delays, and damages as a result of negative slippages. The parties originally agreed that the project would run for a period of 90 days. However, the parties agreed to a later commencement date which resulted to the end date being moved as well. At the very heart of the dispute was the agreement that the contractor’s obligation to pay liquidated damages in the event of a delay. The contractor likewise requested for an extension and for variation orders.

UPSI disallowed the extension and held that Diesel Construction Co., Inc. was in default. UPSI withheld Diesel’s 10% retention money and refused to pay the balance of the contract price. Diesel filed a complaint with the CIAC compelling UPSI to pay the balance, attorney’s fees and damages. The tribunal found for Diesel Construction Co., Inc. but awarded a lesser amount. The tribunal ordered UPSI to pay a reduced portion of the unpaid fees plus attorney’s fees. The counterclaims against Diesel Construction Co., Inc. were dismissed.

UPSI appealed the final award to the Court of Appeals which made alterations to the amount awarded. The Court of Appeals reduced the liquidated damages awarded in favor of Diesel Construction Co., Inc. The latter elevated the case to the Supreme Court based on the Court of Appeals factual rulings. Here, the Supreme Court ruled that the CIAC enjoys a presumption of regularity because the CIAC appointed tribunal is presumed to possess technical expertise in their line of authority.

¹⁶ Diesel Construction Co., Inc. v. UPSI Property Holdings, Inc, G.R. No. 154885, (24 March 2008) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/44845>

*New Kanlaon Construction, Inc. v. First Global BYO Corporation*¹⁷

This case on the other hand affirms the rulings in Diesel Construction Co., Inc. v. UPSI Property and Werr Corp. International v. Highlands Prime, Inc. The dispute stemmed from the construction of the Fort Palm Spring condominium project. The contractor was bound to accomplish the structural and architectural works for a set date.

Unfortunately, the contractor was not able to turn-over the project on time which lead to a dispute over payment and damages. The tribunal found that while the structural works were completed, the architectural works remained to be finished. As a result, the tribunal awarded both parties damages and made deductions on their respective claims.

When the dispute reached the Supreme Court, it ruled that factual findings made by quasi-judicial bodies such as the CIAC are accorded respect and finality when supported by substantial evidence. Thus, the Court of Appeals, when reviewing the awards rendered by the CIAC does not have unbridled discretion in its power of judicial review. The Court of Appeals must review the evidence on record to determine the correctness of its rulings.

*R.V. Santos Company, Inc. v. Belle Corporation*¹⁸

This involves the construction of the Tagaytay Woodlands Condominium project. In this case, Belle Corporation filed with the CIAC a request for a refund of overpayment to its contractor R.V. Santos Company, Inc. (“RVSCI”). To begin the project, Belle Corporation advanced 50% of the total construction cost to RVSCI. The latter delayed the project over and beyond its stipulated completion date. As a result of this, Belle Corporation request an audit over the project. The audit disclosed that Belle Corporation overpaid RVSCI. The latter unfortunately refused to refund the excess payments made to it by Belle Corporation. This lead to the project owner initiating arbitration proceedings against RVSCI.

RVSCI countered that the audit findings cannot be given weight as it was allegedly unilateral and is not sanctioned by their agreement. Additionally, the acquiescence of Belle Corporation to the final billing cannot be revoked as argued by

¹⁷ New Kanlaon Construction, Inc. v. First Global BYO Corporation, G.R. No. 231467-68, (16 October 2019) (Phil.), <https://legaldex.com/jurisprudence/new-kanlaon-construction-inc-v-first-global-byo-corp>

¹⁸ R.V. Santos Company, Inc. v. Belle Corporation, G.R. No. 159561-62, (3 October 2012) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/55286>

RVSCI and thus asks for damages. Belle Corporation, on the other hand, countered that the progress billing was subject for review and that the audit must be admissible. It insisted on the refund owed to them.

The tribunal finally ruled that the third-party audit was admissible and may be given weight. The provision of their contract provided no prohibition for any third-party audits conducted. Both the Supreme Court and the CIAC held that the progress billing was merely provisional subject to final review and acceptance of the project owner. And lastly, it was held that RVSCI was overpaid and was not therefore entitled to damages.

*Transcept Construction and Management Professionals, Inc. v. Aguilar*¹⁹

Here, Transcept and Teresita Aguilar (“**Aguilar**”) entered into an agreement to construct a vacation house. The dispute focused on billing, quality of work and additional works. Aguilar filed a notice of arbitration with the CIAC which awarded her for unaccomplished works, consultancy and additional works. Transcept appealed the final award to the Court of Appeals which made its own computation and reversed the CIAC Tribunal.

In the Supreme Court, it affirmed the ruling of the Court of Appeals with some modifications that the unfinished works be reduced to P30,076.72 instead of P198,916.02.

*William Golangco Construction Corporation v. Philippine Commercial International Bank*²⁰

William Golangco Construction Corporation (“**WGCC**”) and Philippine Commercial International Bank (“**PCIB**”) agreed to enter into a contract for the construction of PCIB Tower II on 20 October 1989. PCIB eventually accepted the completion of the work for PCIB Tower II through a letter dated 1 June 1992. WGCC submitted a one-year guarantee bond to answer for any defects within that one-year period.

The issues arose when the granite wash-out finish on the external walls began peeling off. PCIB requested WGCC to rectify these defects but the latter refused as it alleged that it was in the position to accomplish new finishing work. PCIB incurred

¹⁹ Transcept Construction and Management Professionals, Inc. v. Aguilar, G.R. No. 117556, (8 December 2010) (Phil.).

²⁰ William Golangco Construction Corporation v. Philippine Commercial International Bank, G.R. No. 142830, (24 March, 2006) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/40703>

expenses to repair these cosmetic defects. WGCC asserted that the defect took place beyond the one-year guarantee period. PCIB thereafter initiated arbitration proceedings before the CIAC. The tribunal eventually, held that WGCC was liable for such defect. The Court of Appeals upheld the tribunal's final award to which WGCC elevated to the Supreme Court. The Supreme Court held that the one-year guarantee period as specified in the contract is valid and enforceable. As the defect surfaced beyond the one-year period, WGCC cannot be held liable. The Court, pointed out the autonomous nature of contracts and the necessity of respecting the contractual stipulations made between the parties.

Final Note

The best way of protecting one's investment is to manage risks and maximizing returns is for the parties to reduce their agreements into writing and sign it. In the several cases mentioned, it bears stressing that the dispute arises when there are ambiguous agreements or unforeseen events parties failed to clearly agree on in writing. The CIAP Document 102 aims to address gaps in stakeholder engagements prior to commencing a construction project.

While the Civil Code will primarily govern the parties' relationships, the law does not take into account modern industrial practices pervading the construction space. In the age of monolithic cityscapes, developments and megastructures, the industry demands a more nuanced guideline to ensure that risks are balanced. With CIAP Documents 102 in place, we see more best practices adapted in contract formulation which allows more efficient and improved decision-making.

The adoption of these standards is based on successful approaches. The standards are a product of documented successful outcomes that are a result of consistent and uniform practices. While past performance does not guarantee future gains, the probability of adapting best practices results in consistency and high-quality results, and leads to less disputes. The evils of construction creep when the parties have a different understanding of the quality of work, variation of work, the determination when work is completed and is satisfactory to the project owner. These concepts must be quantitatively defined as qualitative notions of compliance with the obligations may turn out to be subjective, thus the proverbial demons of uncertainty are raised from the dead. When the project owner rises in arms in protest of the contractor's work, it would stop payment automatically which results in an acrimonious relationship. Here, we navigate further into the realms of lawsuits or in this case, construction arbitration disputes.

Eventually, parties are lost in the rabbit-hole of whodunnit and who must bear the cost of the injury. Specific quantifications, timelines, well-defined trigger events

and specific consequences of non-compliance must be clearly defined in the construction agreements. The agreement must be the ultimate map of the parties in order to see what is the very crux of the matter—that the project owner take possession of his new building or edifice, and that the contractor be fairly paid for work done within the work specifications and plans.

Uncertainty is lessened as the parties navigate the choppy seas of construction agreements and disputes when a contract specifically defines the metes and bounds of their specific undertaking. Clarity and an unequivocal understanding of obligations are the *je ne se quoi* of a vibrant commercial world.

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